

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2023-004634

BETWEEN:

METROPOLITAN PROPERTY HOLDINGS LTD

Appellant

- and -

ARTISAN COFFEE CO LTD

Respondent

APPELLANT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Appellant landlord seeks possession of commercial premises and arrears of rent, contending that the Respondent tenant has forfeited the lease by reason of persistent breach of covenants including non-payment of rent and unauthorized alterations.

B. RELEVANT FACTS

2. The Respondent holds a 15-year lease of retail premises at 45 High Street, Richmond, granted in 2015.
3. The Respondent has accumulated rent arrears of £87,500 over the period March 2022 to December 2023.
4. The Respondent carried out structural alterations without the Appellant's consent contrary to clause 4.12 of the lease.
5. The Appellant served a section 146 notice on 15 January 2024.
6. The Respondent has persistently paid rent late over the term of the lease.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Landlord and Tenant Act 1954, Part II
 - Law of Property Act 1925, s.146

D. SUBMISSIONS

8. The Respondent has committed multiple breaches of covenant entitling the Appellant to forfeit.

9. The breaches are irremediable given the persistent pattern of non-payment.
10. Any waiver was limited to the specific rent demands accepted and did not extend to the forfeiture right.
11. Relief from forfeiture should be refused given the history of breaches.

E. AUTHORITIES

12. The following authorities are relied upon:
 - Billson v Residential Apartments Ltd [1992] 1 AC 494
 - Expert Clothing Service & Sales Ltd v Hillgate House Ltd [1986] Ch 340
 - Pineport Ltd v Grange Glen Ltd [2016] EWHC 1318 (Ch)

F. RELIEF SOUGHT

13. The Appellant respectfully requests that this Court:
 - Possession of the premises
 - Mesne profits
 - Costs

Sarah Clarke KC

Emma Wilson

18 November 2020

This is a synthetic document generated for research and training purposes only. It does not represent a real legal case.